

25STCV14875 25STCV14875

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 25STCV14875 Hearing Date: August 10, 2026 Dept: 617

Dept.

617

Date:

8-10-26

Case

#: 25STCV14875

Trial

Date: None Set

RECONSIDER MOTION TO COMPEL ARBITRATION

MOVING

PARTY: Defendants, Netflix, Inc. and Edward Horasz

RESPONDING

PARTY: Plaintiff, Amy Takahara

RELIEF

REQUESTED

Reconsider

Motion to Compel Arbitration

SUMMARY

OF ACTION

Plaintiff

Amy Takahara sued Defendants Netflix, Inc. and Edward Horasz after she was fired from her position at Netflix. On July 31, 2025, Plaintiff filed her First Amended Complaint against Defendants for Discrimination Based on Gender/Sex, Harassment Based on Gender/Sex, Failure to Prevent Discrimination and Harassment, Perceived Disability Discrimination, Retaliation in Violation of FEHA, and Wrongful Termination in Violation of Public Policy. Plaintiff alleges that Defendant Horasz, her supervisor, discriminated against her and harassed her during her employment due to her gender/sex and that she was fired in retaliation for reporting his alleged conduct.

RULING: Denied.

Request for Judicial Notice:

Granted.

Judicial notice is taken of the existence of the JAMS Employment Arbitration Rules, Netflix's information page regarding the maturity rating for its TV shows and movies, and the Netflix website for various shows that Plaintiff worked on during her Netflix employment. (Evid. Code, § 452, subd. (h).)

Evidentiary Objections: The Court does not rule on the evidentiary objections as they are immaterial to disposition of the motion.

The instant hearing comes after the Court elected to comply with the Court of Appeal's writ to vacate its January 26, 2026 order to reconsider Defendants' motion to compel arbitration on the understanding that the dispute involves a sufficient connection to interstate commerce. The parties were permitted to submit supplemental and simultaneous briefs and did so. As explained in the Court's prior order, there is no clear and unmistakable evidence of Plaintiff's intent to delegate arbitrability to the arbitrator, and the Court reaffirms that ruling here. Defendants have also proven the existence of an agreement to arbitrate Plaintiff's claims. In support of their motion, they attached a copy of the "Agreement Regarding Your Netflix Employment (Including Mutual Agreement to Arbitrate)" containing Plaintiff's electronic signature. [Raymond Fisher-Travis Decl. ¶ 7, Ex. B.] The Agreement covers "all employment related disputes," including

Plaintiff's claims here. [Ibid.] Therefore, the sole issue is Plaintiff's lone defense to enforcement of the arbitration agreement: whether the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (EFAA) preempts arbitration of Plaintiff's claims. The Court concludes that it does, and Defendants' motion is denied.

Under the EFAA, "[n]otwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402(a).) A "sexual harassment dispute" is "a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law." (Id. § 401(4).) "[O]nce properly invoked, the EFAA renders an arbitration agreement unenforceable as to the entire case, not merely the sexual harassment claim." (Quilala v. Securitas Security Services, USA, Inc. (2025) 117 Cal.App.5th 75, 88.)

"To prevail on a hostile work environment claim under FEHA, a plaintiff must show 'she was subjected to sexual advances, conduct, or comments that were (1) unwelcome [citation]; (2) because of sex [citation]; and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment.'" (Carranza v. City of Los Angeles (2025) 111 Cal.App.5th 388, 401.) "Whether conduct is sufficiently severe or pervasive is determined by the totality of the circumstances." (Quilala, supra, 117 Cal.App.5th at p. 86.)

Plaintiff

has sufficiently alleged a sexual harassment dispute under any pleading standard. She alleges instances in which Horasz would take credit for her work or projects or give credit to other male employees. [FAC ¶¶ 26-29.] He would ask Plaintiff to take a more active role in meetings but would "take an overwhelming amount of the speaking time as well as credit for her hard work." [Id. ¶ 104.] Plaintiff alleges similarly situated male employees were not treated this way. [Ibid.] During a performance review, Horasz told Plaintiff "he did not think she could 'handle male-based shows,' and that she should just stick to female-based 'relationship' shows," without providing any reason why. [Id. ¶ 117.] And when Plaintiff and Horasz discussed a prior testy exchange during a phone call (and following Plaintiff's complaint to a Senior

Human Resources Business Partner regarding it), Horasz told her “I’m a dude, I get over things quickly” [Id. ¶¶ 41-45.] These actions and statements indicate a pattern of conduct that communicated a demeaning message to Plaintiff that she was seen as inferior because she was female. This is sufficient to plead a sexual harassment claim even if some of the acts or statements were made in connection with “personnel management actions.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 708-09 [hostile message may be communicated through official employment actions when actions “establish a widespread pattern of bias”].) Plaintiff has therefore pled a sexual harassment claim under the FEHA and the EFAA bars arbitration of her claims. Defendants’ motion is thus denied.

Defendants
to give notice.